23STCV04908 23STCV04908

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23STCV04908 Hearing Date: July 31, 2026 Dept: 11

Preliminary
Approval of Class Action Settlement

Department
11

Marilynn Monroe v. Science Applications
International Corporation

Case No. 23STCV04908

Hearing:
July 31, 2026

TENTATIVE
RULING

CONTINUE
preliminary approval for the parties to address the issues listed in the
accompanying checklist.

BACKGROUND

This
is a wage and hour class action. On March
6, 2023, Plaintiff Marilynn Monroe (“Plaintiff” or “Monroe”), individually and
on behalf of all individuals employed by Defendant as hourly, non-exempt
employees who were not paid on time after termination of their employment, commenced

this action against Science Applications International Corporation ("SAIC" or "Defendant") and Does 1 through 100 asserting the following causes of action: (1) waiting time penalties (Labor Code §§201-203), (2) PAGA and other penalties (Labor Code §§2699, et seq. and 558), and (3) unfair competition in violation of California Business and Professions Code, §17200, et seq.
Defendant provides scientific, engineering, and technology applications and solutions consulting services to security, energy, environmental, health, and infrastructure markets worldwide.
Plaintiff was employed by Defendant as a senior security analyst from January 2019 to May 2022.

On April 6, 2023, Plaintiff filed the operative First Amended Class and Representative Action Complaint ("FAC") asserting the same causes of action on behalf of all individuals who were employed by Defendant as salaried, exempt employees, who were not paid on time after termination of their employment. On May 9, 2023, Defendant filed an Answer to the FAC.

On November 19, 2024, and August 23, 2025, the parties participated in all-day mediations presided over by Steve Mehta, which ultimately resulted in a settlement. (Declaration of James M. Treglio ("Treglio Decl."), ¶¶13-15.) A copy of the fully executed Class Action and PAGA Settlement Agreement ("Settlement Agreement" or "Agreement") is attached to counsel Treglio's declaration as Exhibit A.

Now before the Court is the Motion for Order Granting Preliminary Approval of Class Action Settlement ("MPA"), filed on February 10, 2026. On July 16, 2026, Plaintiff filed supplemental papers in support of the MPA.

SETTLEMENT

CLASS DEFINITION

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"Class" means all former exempt employees of Defendant who worked in California and who received their final pay after the time limits set by Labor Code section 201-202 during the Class Period. The "Class" shall not include any person who has signed a release of their final pay claim including, without limitation, a Pick-up Stix release. (Settlement Agreement, ¶1.5)

o “Class
Period” means the period from March 6, 2020, through August 30, 2025. (¶1.12)

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“Aggrieved
Employee” means all former exempt employees of Defendant who worked in
California and who received their final pay after the time limits set by Labor
Code section 201-202 during the PAGA Period. (¶1.4)

o “PAGA
Period” means the period from January 31, 2022 through August 30, 2025. (¶1.30)

.

The Parties agree that class
certification and representative treatment is for purposes of this Settlement
only. (¶12.1)

TERMS OF SETTLEMENT AGREEMENT

The essential
terms are as follows:

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The
Gross Settlement Amount (“GSA”) is $979,500,
non-reversionary. (¶¶1.22, 3.1)

o Escalator Clause: Based on its records, Defendant estimates
that there are 296 Class Members who received their final pay after the time
limits set by Labor Code section 201- 202 during the Class Period. If the total
number of Class Members exceed 325 (which is 10% more than Defendant’s
representation), Defendant will increase the Gross Settlement Amount on a
proportional basis equal to the percentage increase in number of Class Members
above the 10% (i.e., if there was an 11% increase in the number of Class
Members during the Class Period, Defendant will agree to increase the Gross
Settlement Amount by 1%). Provided however, that at Defendant’s discretion, in lieu of paying for any
excess Class Members, the Class Period may be shortened so that it includes
only a total of 296 Class Members.
(¶8)

o The parties must resolve any
uncertainty regarding the Class Period prior to preliminary approval being
granted and notice being distributed.
Based on current records, the parties and the Administrator must review
and verify the number of Class Members and confirm the end date of the Class
Period, revise the Class Period definitions if needed, and remove the
period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are
modified to match any alterations to the Settlement Agreement.

·

The
Net Settlement Amount (“Net”) ($584,000) is the GSA minus the following:

o Up to $326,500 (1/3 of GSA) for
attorney fees (¶3.2.2);

o Up to $35,000 for litigation costs (Ibid.);

o Up to $15,000 for a Service Payment to the named
Plaintiff (¶3.2.1);

§ Each
Plaintiff’s Class Representative payment should not exceed $7,500, absent
substantial justification. Provide
justification for a payment of $15,000.

o Up to $9,000 for settlement
administration costs (¶3.2.3); and

o Payment of $10,000 PAGA Penalties (75%
or $7,500 to the LWDA) (¶3.2.5).

· According
to Plaintiff’s counsel, while discovery was ongoing, Defendant, through a
third-party Claims Administrator facilitated individual settlements outside of
this action. (Treglio Decl., ¶14.) In total, Defendant executed Pick-Up Stix
Settlements for 434 putative class members as of August 15, 2025, and paid out
$820,260 in these settlements. (Treglio
Supp. Decl., ¶3.)

· Funding of GSA: Defendant
shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant's' share of payroll taxes by transmitting the funds to the Administrator no later than 14 days after the Effective Date. (¶4.3)

·

Distribution of GSA: Within 14 days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.4)

·

There is no claim form requirement. (¶3.1)

·

Individual Settlement Payment Calculation: An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of days all Participating Class Members' final pay was paid after the time limits set by Labor Code section 201-202 during the Class Period and (b) multiplying the result by the number of days the Participating Class Member's final pay was paid after the time limits set by Labor Code section 201-202 during the Class Period. (¶3.2.4) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (¶3.2.4.2)

o Tax Allocation: 100% interest/penalties. (¶3.2.4.1)

·

Individual PAGA Payment Calculation: The

Administrator will calculate each Individual PAGA Payment by dividing the amount of the Aggrieved Employees’ 25% share of PAGA Penalties $2,500.00 by the total number of Aggrieved Employees during the PAGA Period. (¶3.2.5.1) If the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (¶3.2.5.2)

o Tax Allocation: The Administrator will report the Individual PAGA Payments on IRS 1099 Forms. (¶3.2.5.2)

.

"Response Deadline" means 60 days after the Administrator mails Notice to Class Members and Aggrieved Employees, and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail his or her Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the date that the Response Deadline has expired. (¶¶1.42, 7.4.4) The same deadlines apply to the submission of challenges to late payment calculations, which must be submitted via fax, email, or mail. (¶7.6)

o If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 10% of the total of all Class Members, Defendant may, but is not obligated, elect to withdraw from the Settlement. (¶9)

.

Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. The Administrator will cancel all checks not cashed by the void date. (¶4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.4.3)

.

The settlement administrator will be Simpluris. (¶¶1.2, 7.1) o

Provide the qualifications and experience of the Administrator, including evidence that the settlement administrator has procedures in place to protect the security of class data and adequate insurance in the event of a data breach or defalcation of funds.

·

Counsel submitted the proposed settlement agreement to the LWDA _______. [Provide proof of submission of the proposed settlement agreement to the LWDA.]

· The named Plaintiff and class members will release certain claims against Defendant. (See further discussion below).

ANALYSIS OF SETTLEMENT AGREEMENT

A. Does a presumption of fairness exist?

1. Was the settlement reached through arm's-length bargaining?

Yes. On November 19, 2024, and August 23, 2025, the parties participated in all-day mediations presided over by Steve Mehta, which ultimately resulted in a settlement. (Treglio Decl., ¶¶13-15.) A copy of the fully executed Class Action and PAGA Settlement Agreement ("Settlement Agreement" or "Agreement") is attached to counsel Treglio's declaration as Exhibit A.

2. Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes. Plaintiff's counsel represents that prior to mediation, Defendant produced a spreadsheet which provides information regarding the last date of employment, the date of last payment, and the wages of the employees when broken down by hour. (Treglio Decl., ¶19(b).) Moreover, after the first unsuccessful mediation session, Plaintiff deposed Defendant's corporate designee, Jennifer

Cushion. (Treglio Decl., ¶13.)

3. Is
counsel experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including wage and hour class actions. (Treglio Decl., ¶¶4-9, Ex. B.)

4. What
percentage of the class has objected? This cannot be determined until the fairness hearing.
See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, (“Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.”)

CONCLUSION: The settlement is entitled to a presumption of fairness.

B.
Is
the settlement fair, adequate, and reasonable?

1.
Strength of Plaintiffs’ case. “The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel
provided the following exposure analysis:

Claim

Maximum Exposure

Realistic Exposure

Waiting Time Penalties

$2,624,173.12

$2,624,173.12

PAGA Penalties

$2,313,600

$1,156,800

Total

$4,937,773.12

$3,780,973.12

(Treglio Decl., ¶¶19-21.)

2.
Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 ("Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.").)

4. Amount offered in settlement.

Plaintiff's counsel obtained a Gross Settlement Amount of $979,500. The settlement amount is 19.8% of the maximum potential exposure and 25.9% of the realistic potential exposure, which is within the "ballpark" of reasonableness.

The
$979,500 settlement amount, after reduction by the requested deductions, leaves
$584,000 to be divided among approximately 296 class members. The resulting payments will average $1,972.97.
($584,000 / 296 = $1,972.97)

5. Extent
of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel conducted sufficient discovery.

6. Experience
and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed "fair, adequate, and reasonable."

C.
Scope
of the release

Effective on the date when Defendant fully funds the entire Gross Settlement Amount, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶5)

· Release by Participating Class Members: All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from the class claims that Plaintiff alleged in the Operative Complaint against the Released Parties, including: (a) failure to pay timely all wages due at termination; (b) all claims under California Unfair Competition Law that were alleged in the Operative Complaint based on the facts and legal theories contained in the Operative Complaint. The time period governing the Released Class Claims shall be the Class Period. (¶5.2)

· Release by Aggrieved Employees:

Plaintiff – in her individual capacity and on behalf of the State of California and the LWDA – and all Class Members who are Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from the PAGA claims that Plaintiff alleged in the operative complaint or PAGA notice letter to the LWDA against the Released Parties, including, but not limited to, all PAGA claims seeking civil penalties premised upon: a) failure to pay timely all wages due at termination; b) all other claims for civil penalties recoverable under the Private Attorneys General Act, Labor Code §§ 2698 et seq that were alleged in the operative complaint or PAGA notice letter to the LWDA. The time period governing the PAGA Released Claims shall be the PAGA Period. The PAGA Released Claims do not release any Aggrieved Employees' claims for wages or statutory penalties. (¶5.3)

o

"PAGA Notice" means

Plaintiff's December 12, 2022 letter to Defendant and the LWDA providing notice pursuant to Labor Code section 2699.3, subd.(a). (¶1.32; Treglio Decl., ¶12.) [Provide a copy of Plaintiff's notice letter to the LWDA.]

o

Because future PAGA claims

are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 5.3 of this Agreement and are eligible for an Individual PAGA Payment. (¶7.5.4)

· Named Plaintiff additionally provides a general release and a §1542 waiver. (¶5.1)

· "Released Parties" means: Defendant and each of its former and present directors, officers, shareholders, owners, members, attorneys, insurers, predecessors, successors, assigns, subsidiaries, and affiliates. (¶1.40)

D.

May

conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (Amchem Products, Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (Dunk at 1807, fn. 19.) Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (Wershba at 240.)

2.

Analysis

a.

Numerosity. There are approximately 296 class members. (MPA at 6:8.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) [Address whether the ascertainability requirement is satisfied.]

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Counsel contends that there are common legal and factual questions as to whether (1) Defendant failed to pay all wages due to former employees; (2) Defendant is liable for PAGA and other penalties based on the foregoing; and (3) Defendant engaged in unfair business practices based on the foregoing. (MPA at 6:16-18.)

As to typicality, Counsel contends that Plaintiff's claims are typical of the Class because, like other Class Members, Plaintiff was subject to Defendant's failure to pay all wages to former employees and seeks wage and penalties for herself and the rest of the Class. (MPA at 6:21-23.)

As to adequacy, Plaintiff does not have any conflicts of interest with the Class, understands her duties as Class Representative, has been active in the litigation of the action, and is represented by adequate counsel. (MPA at 6:28-7:12; see Declaration of Marilynn Monroe.)

d. Adequacy of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e. Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

E. Is the notice proper?

1. Content of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit 1. The Notice's content appears to be

acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and claims administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Class Notice will be mailed in English. (¶1.11) [If notice will be given in English only, explain why this is sufficient.]

Address the following issues in the Notice:

.

According to the Notice, Aggrieved Employees' 25% share of the PAGA Penalties will be allocated based on their PAGA Period Pay Periods. (Notice, ¶3.2(d).) However, according to the Settlement Agreement, the 25% share will be divided by the total number of Aggrieved Employees during the PAGA Period. (Agreement, ¶3.2.5.1) Moreover, the term "PAGA Period Pay Period" does not appear in the Agreement. Address this inconsistency.

.

Ensure that the full release language is included in the Notice. Currently, the following sentence, set forth in ¶5.3 of the Settlement Agreement is omitted from ¶3.10 of the Notice: "The PAGA Released Claims do not release any Aggrieved Employees' claims for wages or statutory penalties."

.

The Notice at ¶¶6 and 7 should clarify that requests for exclusion and written objections may be submitted to the Administrator via fax, mail, or email, as set forth in the Settlement Agreement at ¶¶1.42, 7.5.1, 7.7.2.

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Remove

the following from the header on page 10 of the Notice: “87023971.v1-OGLETREE.”

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The link provided in the Notice directing Class

Members to the Superior Court website is invalid. (Notice, ¶9)

Provide a valid link.

2.

Method of class notice.

Class

Data: Not later than 15 days after the Court grants Preliminary Approval of the Settlement, Defendant will simultaneously deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2)

Notice by direct mail. Using

best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service (“USPS”) mail, the Class Notice.

Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2)

Not

later than 3 business days after the Administrator’s receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3) The deadlines for Class Members’ written objections, Challenges, and Requests for Exclusion will be extended an additional 14 days beyond the 60 days otherwise provided in the Class Notice for all Class Members whose notice is remailed. The Administrator will inform the Class Member of the extended deadline with the re-mailed Class Notice. (¶7.4.4)

Notice of the date, time, and location of the

Final Approval Hearing and the Final Judgment will be posted on the settlement administrator's website. (¶7.8.1)

3.
Cost of class notice. As indicated above, claims administration costs are estimated to equal approximately $9,000.
Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

F. Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $326,500 (1/3 of GSA) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees.
Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel. Class Counsel should also

be prepared to justify the costs (capped at $35,000) sought by detailing how they were incurred.

G. Incentive Award to Class Representative

Class Counsel will seek an Enhancement Award of $15,000 for the Named Plaintiff. In connection with the final fairness hearing, the named Plaintiff must submit a declaration attesting to why she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement awards at the time of final approval.

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LOS ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST FOR

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Department: SSC-11

RE: Marilynn Monroe v. Science Applications International Corp. (Case No. 23STCV04908)

In reviewing your motion for preliminary approval of class action settlement, the Court orders further briefing on the items checked below.

The additional briefing shall be due by ____________________________________, 2026. Note: if briefing is not filed by said date the hearing will be placed off calendar. Your hearing date set for ______________, is continued to the first available date of _________ at _____ in Department 11.

This checklist provides direction on what information and argument the court requires to grant a motion for preliminary approval of a class action settlement. All parties are urged to carefully review the checklist and fully comply with each item that applies to the case in order that the motion may be promptly ruled upon. The content of the motion should follow the same order as this checklist, as that is how the judge and research attorney review the motion.

You should also consider using the form wage and hour settlement agreements now available on the court's website at https://www.lacourt.org/forms/all – "Civil Forms" section. With input and unanimous consensus from an Ad Hoc Wage and Hour Committee (chaired by Judge Hogue and Judge Cunningham and comprised of 8 plaintiff's attorneys and 8 defense attorneys), the court has posted: (1) a form class action settlement agreement, (2) a form class action/PAGA settlement agreement, (3) and a form PAGA settlement agreement. Using these forms should cut down on attorney negotiation time and reduce the lag time between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings. These forms are encouraged but entirely optional.

I. MOVING PAPERS (Motion and Declarations)

All facts submitted for the court to consider must be provided in the form of a declaration or other admissible evidence. The court will not consider facts stated only in the motion.

A. Introductory Information

¿ Summary
of the litigation, including identity of the parties, brief procedural history,
claims asserted, and general factual
basis for the claims.

B. Dunk/Kullar Analysis

¿ Summary
of the case, including the legal and factual basis for each claim. (Kullar
v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 133 (Kullar);
Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186
Cal.App.4th 399, 409.)

¿ Summary
of the investigation and discovery conducted, including the specific documents reviewed prior to agreeing
to settle the case. (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802, as modified
Sept. 30, 1996 (Dunk).) If counsel's analysis was informed by a data sample, show that the sample is
statistically reliable.

¿ Summary of settlement
negotiations, including when the settlement was reached, and

whether the
parties were assisted by a mediator. (Dunk, supra, 48 Cal.App.4th at p. 1802.)

¿ A
summary of the risks, expenses, complexity, and duration of further litigation
if the

settlement is not
approved.

¿ A
summary of the risks of achieving and maintaining class action status.

¿
Specific information sufficient for the court to make an independent

determination that the consideration being received for the release of class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation. (Kullar, supra, 168 Cal.App.4th at 129.) This discussion should specify the maximum realistic recovery of each claim asserted in the operative complaint, defenses asserted by Defendant, and any other relevant factors justifying the amount offered in settlement. If the settlement is predicated on a payment plan or is predicated on defendant's financial situation, admissible evidence of Defendant's financial situation should be provided, including appropriate financial documents such as a balance sheet, statement of cash flows, profit and loss statement, and the like.

¿ If approval of the settlement of class claims is requested together with approval of non-class claims (such as claims under the Labor Code's Private Attorney General Act (PAGA)) discuss why the amount allocated to the non-class claims is fair to those affected. See Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77 (Moniz).

C. Class Certification

¿ Numerosity: Total number of members in the settlement class and number of members in each sub-class (if applicable).

¿ Ascertainability: The manner by which members of the class will be identified and when. (Noel v. Thrifty Payless (2019) 7 Cal.5th 955.)

· Address whether the ascertainability requirement is satisfied.

¿ Community of Interest: Discuss specific facts showing that the proposed class representatives have claims or defenses typical of the class and can adequately represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

¿

Adequacy:

Class Counsel: A summary of Class Counsels' experience and a listing of all prior cases in which each named Class Counsel has been approved by a court to act as lead or co-counsel. (See Dunk, supra, 48 Cal.App.4th at p. 1802.)

Class Representative(s): Provide evidence that each proposed class representative has agreed to act as same and understands his or her responsibilities. (See Soderstedt v. CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 155-156; Jones v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986, 998-999).

D. Claim Requirement (if applicable)

¿ If class members are required to submit a claim to receive compensation, explain why a claim form is necessary and either 1) provide an estimate of the anticipated claims rate or 2) provide an explanation why a claims rate cannot be provided.

¿ Provide a detailed explanation why a "claims made" settlement is appropriate in this case.

¿ Indicate what actions class counsel will take to encourage claim submission.

¿ Explain why the claims process is not so burdensome that relief would be inaccessible to class members (if applicable).

E. Miscellaneous

¿ If appropriate, explain why the settlement includes terms that are outside the scope of the operative complaint. (Trotsky v. Los Angeles Fed. Savings & Loan Assn. (1975) 48 Cal.App.3d 134, 148.) If approval of settlement of a PAGA claim is requested provide a copy of Plaintiff's notice letter to the

LWDA.

.

Provide a copy of
Plaintiff's notice letter to the LWDA.

¿ If
notice will be given in English only, explain why this is sufficient.

¿ A
statement of any affirmative obligations to be undertaken by the class member or class counsel and the reason for such obligations.

¿ Provide
information regarding any fee splitting agreement and whether the client has given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

¿ Any
agreement that has injunctive relief against a class representative generally is not appropriate in a class action case. Provide the authority and factual reasons why this case is an exception. See Moniz, supra, 72 Cal.App.5th at 84. ("[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it." (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131 [115 Cal. Rptr. 3d 80].))

.

According to the Proposed Order, "neither Plaintiffs
nor any Class Member may either directly, representatively, or in any other capacity, commence or prosecute against Defendants any action or proceeding in any court or tribunal asserting any of the claims alleged in the Action filed herein." (p. 6.) Why is this language proper? The court will not issue injunctive relief against a class representative. Revise
accordingly.

¿
Explanation as to why any class representative enhancement is reasonable, including what the class representative did beyond the expected services of any class representative. (Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 412; Radcliffe v. Experian Information Solutions Inc.

(9th Cir. 2013) 715 F.3d 1157, 1165.) In PAGA settlements explanation should be provided as to why an incentive award is appropriate.

.

Each Plaintiff's Class Representative payment should not exceed $7,500, absent substantial justification. Provide justification for a payment of $15,000.

SETTLEMENT AGREEMENT

The settlement agreement should address the following:

A. The Basics

¿ Class definition. If a PAGA representative action is settled with a proposed Class Settlement consider whether there should be separate definitions for Class Members and Aggrieved Employees.

.

According to the Escalator Clause set forth in ¶8 of the Settlement Agreement, "[i]f the total number of Class Members exceed 325 (which is 10% more than Defendant's representation), Defendant will increase the Gross Settlement Amount on a proportional basis …[or] at Defendant's discretion, in lieu of paying for any excess Class Members, the Class Period may be shortened so that it includes only a total of 296 Class Members." The parties must resolve any uncertainty regarding the Class Period prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the Administrator must review and verify the number of Class Members and confirm the end date of the Class Period, revise the Class Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement Agreement.

¿ Class and Release Period: If the class and release periods extend beyond the preliminary approval explain why this is appropriate.

B. Release
of Claims

¿ Scope:
The scope of any release given by class members must be defined with precision and clarity. Any released claims not presented directly in the operative complaint should be based on the facts alleged in the operative complaint. (See Amaro v. Anaheim Arena Mgmt. (2021) 69 Cal. App. 5th 521, 537 and FN. 5; Uribe v. Crown Building Maintenance Co. 70 Cal. App. 5th 986, 1005.)

¿ Class
cases which include a PAGA claim should have a separate release for the PAGA claim tied to the facts alleged in the notice given to the LWDA. Id.

¿ If PAGA and Class
Settlement: The Release and Notice should provide an explanation that released claims include all PAGA claims that could have been premised on the facts alleged in the Plaintiff's LWDA Letter and aggrieved employees will release PAGA claims even if class members request exclusion from the class. See Robinson v. Southern Counties Oil Co. (2020) 53 Cal.App.5th 476.

¿ A Civil
Code section 1542 waiver is generally not appropriate in a class action case as to the putative class members (if applicable). Provide the authority and factual reasons why this case is an exception. (Israel-Curley v. California Fair Plan (2005) 126 Cal.App.4th 123, 129; Salehi v. Surfside III Condominium Owners' Assn. (2011) 200 Cal.App.4th 1146, 1159–1161.)

¿ Release
Effective Date: Indicate the point in time at which the release will be deemed effective as to the absent class members. If the release will be effective before settlement funds are paid, explain why this is in the best interest of the class.

¿ Class
Data: If there are confidentiality provisions, explain why they are in the best interest of the Class and whether they will impede Class Counsel's ability to discharge fiduciary duties.

C. Monetary Terms of Settlement

¿
Settlement Amount: Indicate the amount of the gross settlement, how and when the

settlement will be paid, and information regarding
payment plan, if any. If a class claim is being settled with a PAGA claim the amounts allocated should be separated and paid only to the aggrieved employees.

¿
Deductions from the settlement fund: Indicate the amounts to be deducted from the gross settlement for attorneys' fees and costs, plaintiff incentive awards, administrative costs, PAGA payment and allocation of award to LWDA and the parties, and any other existing deductions.

¿ If
there are subclasses, explain why the monetary distribution is fair to each subclass. Ensure there is a class representative who fits the definition of each subclass.

¿
Information about how attorney fees will be calculated. The percentage method, with or without a lodestar cross-check, may be used in common fund cases. (Laffitte v. Robert Half Internat., Inc. (2016) 1 Cal.5th 480, 503.) In other cases, counsel should fully brief how the fees are calculated.

¿ If
wages are involved, explain how Defendant's share of taxes will be paid.

¿
Whether, and under what circumstances, amounts may revert to Defendant, and a

justification for such reversion (if applicable). (Cundiff
v. Verizon California, Inc. (2008) 167 Cal.App.4th 718, 728–729.)

¿ Payment
Formula: Amount and manner of distribution of the compensation to each class member, including the estimated amount each class member will receive and the

timeline on which payments will be issued.

¿ Tax
allocation of settlement payments.

¿ Nature
of injunctive relief (if any), and valuation of such relief.

D. Notice Administration

The following
issues regarding notice administration should be addressed in the settlement

agreement. A copy
of the proposed notice must be attached to the settlement agreement as an

exhibit.

¿
Indicate the administrator for the settlement and why the bid for
administration is fair.

¿ Provide
the qualifications and experience of the Administrator, including evidence that
the settlement administrator has procedures in place to protect the security of
class data and adequate insurance in the event of a data breach or defalcation
of funds.

¿
Indicate how/when the administrator will receive the class list.

¿
Indicate whether the list will be updated by the administrator prior to the
initial mailing by use of National Change of Address Registry.

¿ Provide
the deadline for the initial issuance of notice to class members.

¿ Ensure
the content of the notice complies with California Rules of Court, rule

3.766(d). In wage and hour cases the notice should indicate the specific amount the class member will receive and how that amount was calculated. A separate breakdown for PAGA payments should be provided. The terms of the release(s) should be reflected in the Notice.

Address the following issues in the Notice:

.

According to the Notice, Aggrieved Employees' 25% share of the PAGA Penalties will be allocated based on their PAGA Period Pay Periods. (Notice, ¶3.2(d).) However, according to the Settlement Agreement, the 25% share will be divided by the total number of Aggrieved Employees during the PAGA Period. (Agreement, ¶3.2.5.1) Moreover, the term "PAGA Period Pay Period" does not appear in the Agreement. Address this inconsistency.

.

Ensure that the full release language is included in the Notice. Currently, the following sentence, set forth in ¶5.3 of the Settlement Agreement is omitted from ¶3.10 of the Notice: "The PAGA Released Claims do not release any Aggrieved Employees' claims for wages or statutory penalties."

.

The Notice at ¶¶6 and 7 should clarify that requests for exclusion and written objections may be submitted to the Administrator via fax, mail, or email, as set forth in the Settlement Agreement at ¶¶1.42, 7.5.1, 7.7.2.

.

Remove the following from the header on page 10 of the Notice: "87023971.v1-OGLETREE."

.

The link provided in the Notice directing Class Members to the Superior Court website is invalid. (Notice, ¶9) Provide a valid link.

¿ Ensure

the notice accurately reflects the Court's current social distancing procedures for attendance at hearings and review of court files. (Counsel should check the Court website for most current information.)

¿
Indicate how and when payments will be processed.

¿ Indicate
how notices returned to the administrator as undeliverable will be handled.

¿Explain
how re-mailed notices, if any, will be handled. Will class members who receive re-mailed notices be given an extended deadline to respond (i.e., opt-out, object, and dispute workweeks)?

¿ Explain
how notice of any change of the date or location of the hearing will be given.

¿
Indicate whether there will be a settlement website. If so, provide the URL.

¿ If
publication notice will be given indicate the timing, locations, and manner by which publication notice will be disseminated.

¿
Explain how notice of final judgment will be given to the class. (Cal. Rules of Court, rule 3.771(b)) (e.g. Posted on administrator's website.)

E. Responses to Notice

¿
Description of the procedures for submitting written objections, requests for exclusion, claim forms (if applicable) and disputes to estimated payments.

¿
Indicate the deadline to submit objections, requests for exclusion, claim forms (if applicable), and/or disputes to workweeks. Confirm the deadline is reasonable and that class members who receive re-mailed notices will be given an extension.

¿ The
objection procedure should be the same as the opt-out procedure, with the only requirement being that objections be mailed to the settlement administrator and not filed with the court.

¿ Do not
include language indicating that class members may only be heard at final approval if they have complied with all objection procedures or that they must use specific language to request exclusion, or, if a specific procedure is sought, explain why it is necessary. In
general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection.

· According to the
Proposed Order at page 5, "Subject to approval of the Court, only a Class Member who has filed and served valid and timely notice of intention to appear at the Final Approval Hearing ("Notice of Intention to Appear") at least fifteen days prior to the Final Approval Hearing or such other date set by the Court and do not request exclusion, may be heard at the Final Approval Hearing." The Proposed Order should not
include language indicating that class members may only be heard at final approval if they have complied with all objection procedures. In general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection. Moreover, this
requirement does not appear in the Settlement Agreement. Revise or explain why this specific procedure is necessary.

F. Cy Pres Distribution

¿
Indicate the length of time from issuance for which settlement checks will remain valid.

¿ Identify
the fund to which uncashed checks will be directed and detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384. The Court's Omnibus Trailer Bill of 2018 replaced the language of the prior statutory distribution scheme under Code of Civil Procedure, section 384 with a requirement that the Court re-open judgments following the final distribution

of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

¿ Explain
why the cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. (State of California v. Levi Strauss & Co. (1986) 41 Cal.3d 460, 472; In re Microsoft I-V Cases (2006) 135 Cal.App.4th 706, 722; Nachshin v. AOL, Inc. (9th Cir. 2011) 663 F.3d 1034, 1038–1041; Dennis v. Kellogg Co. (9th Cir. 2012) 697 F.3d 858, 865; Code Civ. Proc., § 384.)

¿
Provide declarations by all parties and counsel disclosing any interest or involvement (or lack thereof) in the governance or work of the cy pres recipient.

G. MISCELLANEOUS

¿ Assure the Settlement Agreement and Notice
are consistent and that the Settlement Agreement (including revised versions) has been signed by all parties and counsel. Carefully proofread both.

1) Ensure
that all internal references in the Settlement Agreement are accurate. For example, ¶3.1 of the Settlement Agreement refers to ¶6.1 for the funding deadline, instead of ¶4.3. Moreover, ¶7.5.3 refers to ¶6.3 for the release language, instead of ¶5.3.

2)
Ensure that there are no typographical errors in the Settlement Agreement or Notice, including, but not limited to the following: Paragraph 12.1 of the Settlement Agreement should state: “If, for any reason the Court does not grant Preliminary Approval, Final Approval or enter Judgment…”

3) Prior
to filing the Motion for Final Approval, please ensure that (1) all the information presented in motion is consistent with the terms of the Settlement Agreement and (2) there are no typographical errors. The Motion for Preliminary Approval, filed on February 10, 2026, contains several inconsistencies with the Settlement

Agreement, including the Response Deadline, and several typographical errors.

¿ The Settlement Agreement and paperwork derivative thereof should not suggest that the end result of court approval will be dismissal of the Action with prejudice or entry of a Final Judgment and Order dismissing with prejudice all claims. See California Rules of Court, rule 3.769(h).

III. EXHIBITS TO THE MOTION

¿ Provide proof of submission of the proposed settlement agreement to the LWDA. (Lab. Code, § 2699, subd. (l)(2).)

¿ Include a proposed Judgment, which should not include a dismissal or any findings not contained in the Final Approval Order. (Cal. Rules of Court, rule 3.769(h).)

Address the following issues in the Proposed Order:

. Review the Proposed Order and ensure that all deadlines set forth in the Proposed Order are consistent with the deadlines set forth in the Settlement Agreement. Currently, there are several inconsistencies.

. According to the Proposed Order, Defendant shall provide the Settlement Administrator with a list of Class Members containing their date of birth information. (pp. 2-3.) However, according to the Settlement Agreement, the Class Data includes Class Member’s name, last-known mailing address, Social Security number, and the numbers of days the Class Member’s final pay was paid after the time limits set by Labor Code section 201-202. (Agreement, ¶1.8) There is no reference to Class Members’ dates of birth in the Settlement Agreement. Address this inconsistency.

.

Ensure that the acceptable methods
for submitting requests for exclusion and written objections set forth in the Proposed Order are consistent with the methods set forth in ¶1.42 of the Settlement Agreement. Moreover, remove
any references to claim forms in the Proposed Order, as there is no claim form requirement in the Settlement Agreement.

¿ All
exhibits should be bookmarked, as set forth in the Presiding Judge's First Amended General Order of May 3, 2019 re: Electronic Filing, available on the Court website.

If the Settlement Agreement is modified pursuant to this
checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties and counsel. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms.

Modify notice to match any alterations to the Settlement
Agreement.

Date: July 31, 2026

____

JUDICIAL
OFFICER